

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201509097	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 10/25/2015 3:55 PM	Location of Incident: Corner of West 23rd Street and Neptune Avenue	18 Mo. SOL 4/25/2017	Precinct: 60		
Date/Time CV Reported Mon, 10/26/2015 9:14 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/26/2015 9:14 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Cesar Reyes	13929	952159	PSA 1
2. POM Lukasz Banach	17932	950043	PSA 1

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Alberti	05750	951485	060 PCT
2. POM John Passarella	27897	949451	C R C

Officer(s)	Allegation	Investigator Recommendation
A . POM Lukasz Banach	Abuse: PO Lukasz Banach stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Lukasz Banach	Abuse: PO Lukasz Banach threatened to arrest § 87(2)(b)	B . Substantiated
C . POM Cesar Reyes	Abuse: PO Cesar Reyes interfered with § 87(2)(b)'s ability to record an incident.	C . Substantiated
D . POM Cesar Reyes	Abuse: PO Cesar Reyes unlawfully arrested § 87(2)(b)	D . Substantiated
E . POM Cesar Reyes	Force: PO Cesar Reyes used physical force against § 87(2)(b)	E . Exonerated
F . POM Cesar Reyes	Force: PO Cesar Reyes used a chokehold against § 87(2)(b)	F . Unsubstantiated
G . POM Cesar Reyes	Off. Language: PO Cesar Reyes made remarks to § 87(2)(b) based upon race.	G . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

This case was filed by § 87(2)(b) on October 26, 2015 with the CCRB via phone.

On October 25, 2015 at 3:55 p.m., § 87(2)(b) and her son, § 87(2)(b) were driving in the vicinity of West 23rd Street and Neptune Avenue in Brooklyn. Their vehicle was stopped by PO Lukasz Banach (**Allegation A**). During the car stop, § 87(2)(b) exited her vehicle to smoke and record the officers with her phone. PO Banach threatened to arrest § 87(2)(b) for obstructing governmental administration because she was yelling, moving closer to the car, and refused to step away (**Allegation B**). While § 87(2)(b) was still recording the incident with her phone, PO Cesar Reyes exited his vehicle and placed § 87(2)(b) under arrest (**Allegation C, Allegation D**). While she was being handcuffed, PO Reyes pushed § 87(2)(b) against the police car (**Allegation E**). When § 87(2)(b) was being placed in the back of the police car, PO Reyes allegedly grabbed § 87(2)(b)'s neck and pushed her into the backseat (**Allegation F**). While she was in the back of the car, PO Reyes allegedly said § 87(2)(b) was “acting like a savage” (**Allegation G**). § 87(4-b), § 87(2)(g) § 87(2)(b)

§ 87(2)(b) submitted video recorded by § 87(2)(b) during this incident. § 87(2)(b) was arrested for obstructing governmental administration and was released with a summons for disorderly conduct after she arrived at the stationhouse. § 87(2)(b) was issued a summons for driving a vehicle with broken glass.

Mediation, Civil and Criminal Histories

- Mediation was offered to § 87(2)(b) during her interview. § 87(2)(b) chose to have her complaint mediated.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- The NYC Office of the Comptroller responded to a request indicating that § 87(2)(b) and § 87(2)(b) have not filed a notice of claim in regards to this incident (Board Review 02).

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) and § 87(2)(b) at the CCRB (Board Review 03, Board Review 04).
- PO Banach has been a member of service for four years and has no substantiated allegations. PO Banach has one prior allegation for discourtesy § 87(2)(g) [REDACTED].
- PO Reyes has been a member of service for three years and has no substantiated allegations. PO Reyes has three prior allegations including one prior force allegation in CCRB case 201410376 which was closed as complainant uncooperative (Board Review 06).

Findings and Recommendations

Potential Issues

§ 87(2)(b) was recording the officers during this incident before she was placed under arrest. § 87(2)(b) testified that she deleted her video from her phone because she thought it would help get her released. § 87(2)(b) testified she did this of her own free will and none of the officers asked § 87(2)(b) to delete this video.

Allegation A – Abuse of Authority: PO Lukasz Banach stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that § 87(2)(b)'s vehicle was stopped by PO Banach for having a cracked front windshield. PO Banach testified that he made the determination to stop § 87(2)(b)'s vehicle (Board Review 07). § 87(2)(b) was issued a summons for violating vehicle and traffic law section 375-22 (Board Review 08). § 87(2)(b) and § 87(2)(b) both acknowledged that the front windshield of the car had a crack in it (Board Review 09, Board Review 10). § 87(2)(b) indicated that he had the crack repaired the day after this incident occurred.

VTL 375-22 states, “It shall be unlawful to operate a motor vehicle upon the public highways of this state which is equipped with any glass which is so broken, fractured or discolored as to distort visibility” (Board Review 11).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Exonerated**.

Allegation B – Abuse of Authority: PO Lukasz Banach threatened to arrest § 87(2)(b)

Allegation C – Abuse of Authority: PO Cesar Reyes interfered with § 87(2)(b)'s ability to record an incident.

Allegation D – Abuse of Authority: PO Cesar Reyes unlawfully arrested § 87(2)(b)

§ 87(2)(b) testified that the vehicle she was traveling in with her son, § 87(2)(b) was stopped (Board Review 09). PO Banach came to the car and explained that he had been stopped for driving with a cracked windshield. § 87(2)(b) asked the officer if this was a moving violation and how he could have seen the cracked windshield if he was driving behind him. PO Banach collected § 87(2)(b)'s license and returned to his car. Ten minutes later, PO Banach came back and asked for § 87(2)(b)'s registration. § 87(2)(b) thought the stop was going to take a while longer so she got out of her car to smoke a cigarette. About a minute after she got out of the car § 87(2)(b) also started to record the officers with her cell phone. The officers were sitting in their police car. § 87(2)(b) was standing on the sidewalk near the bumper of her son's car. PO Banach said over the speaker, “Move away from the car. If you don't move you're going to be arrested.” PO Reyes got out of the passenger side of the car and told § 87(2)(b) she was under arrest for obstruction. Later when § 87(2)(b) was in the back seat of the police car, § 87(2)(b) heard PO Reyes tell PO John Passarella and PO Anthony Alberti, two additional officers who had responded to the scene, that § 87(2)(b) had been reaching into their window. § 87(2)(b) denied that she reached into the police car's window.

A statement was obtained from § 87(2)(b) on November 4, 2015 (Board Review 10). § 87(2)(b) stated that he was stopped and informed by PO Banach that he was stopped because

there was a crack in his windshield. § 87(2)(b) gave PO Banach his license and union card. Ten minutes later PO Banach returned to § 87(2)(b)'s window for his registration. § 87(2)(b) got out of the car and started smoking a cigarette. § 87(2)(b) walked toward the rear of his car. No officer told § 87(2)(b) to get back inside the car. § 87(2)(b) was watching his mother through the rearview mirror. § 87(2)(b) was trying to record the license plate on the police officers' car. PO Banach said over the speaker, "Step away from the car or you're going to be arrested for obstruction." § 87(2)(b) did not know if § 87(2)(b) was saying anything to the officers because he was recording a video of himself for his blog at the same time this was happening. PO Reyes got out of his car. § 87(2)(b) heard his mom say, § 87(2)(b) come get my phone. This is my phone. I'm not giving you my phone." § 87(2)(b) got out of his car and he saw his mom bent over the car and she was being handcuffed.

PO Reyes testified that § 87(2)(b) stepped out of her car while he was in the car writing the summons with PO Banach (Board Review 12). § 87(2)(b) was recording the officers with her phone but he did not say or do anything to stop her from recording. § 87(2)(b) walked over to the passenger side window of the police car where PO Reyes was sitting inside. § 87(2)(b) was within inches of the window. § 87(2)(b) was yelling and cursing at the officers but PO Reyes could not recall what specifically she was saying. § 87(2)(b)'s closeness and her cursing interfered with his ability to continue writing the summons. § 87(2)(b) was not doing anything else that was interfering with his ability to complete the car stop besides yelling and cursing. § 87(2)(b) was not doing anything with her body besides recording when she was next to the window. § 87(2)(b) never tried to reach inside the window of the police car. PO Reyes did not tell any other officer that § 87(2)(b) had reached into the window. PO Reyes told § 87(2)(b) to step back but she did not comply. PO Reyes deemed § 87(2)(b) to be under arrest for obstructing governmental administration at this point and proceeded to handcuff her.

PO Banach testified that § 87(2)(b) got out of her car during the car stop. § 87(2)(b) started recording the officers and yelling, cursing, and making racial slurs at him and PO Reyes (Board Review 07). PO Banach issued § 87(2)(b) three commands through the window for her to move away from the police car. § 87(2)(b) kept moving closer to the police car. PO Banach said over the speaker, "Move away from our car. Don't get any closer or you're going to get arrested for obstructing governmental administration." § 87(2)(b) was right next to the passenger side window of the police car. § 87(2)(b)'s yelling and closeness to the car raised alarm for PO Banach. § 87(2)(b) never tried to reach inside the police car. PO Banach never told any other officer that § 87(2)(b) had reached into the window. PO Reyes got out of his car to arrest § 87(2)(b) for OGA.

PO Alberti and PO Passarella worked out of the 60st Precinct on the incident date and responded to this incident based on observations they made while driving by on patrol. PO Reyes and PO Banach worked out of PSA1. PO Alberti testified that he observed § 87(2)(b) standing next to the PSA1 officers' police car with her camera (Board Review 13). § 87(2)(b) was talking but he did not know what she was saying. PO Passarella testified that he saw § 87(2)(b) standing a few feet away from the passenger side of the police vehicle (Board Review 14). § 87(2)(b)'s closeness to the police vehicle prompted him and PO Alberti to make sure everything was ok. PO Passarella did not remember if § 87(2)(b) was saying anything while she was next to the police car.

In re M, 108 Misc 2d 376 (1981) it was determined that "the crime of obstructing governmental administration is committed by means of intimidation, physical force, or

In PD v. Grossman (OATH Index 2382/00R), it was found that misconduct occurred when an officer threatened to arrest a civilian without probable cause to do so (Board Review 24).

Patrol Guide 208-03 states that “taking photographs, videotapes, or tape recordings” does not “constitute probable cause for arrest or detention of an onlooker unless the safety of officers or other persons is directly endangered or the officer reasonably believes they are endangered or the law is otherwise violated” (Board Review 16).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B, Allegation C, and Allegation D** be closed as **substantiated**.

Allegation E – Force: PO Cesar Reyes used physical force against § 87(2)(b)

Allegation F – Force: PO Cesar Reyes used a chokehold against § 87(2)(b)

Allegation G – Offensive Language: PO Cesar Reyes made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) testified that PO Reyes immediately got out of his car when PO Banach told her that she would be arrested if she did not move. PO Reyes tried to take § 87(2)(b) s phone but she pulled her arms away from him. § 87(2)(b) was asking why she was being placed under arrest. PO Reyes told § 87(2)(b) she was under arrest for obstruction. § 87(2)(b) said that it was not a crime to record the officers. PO Reyes grabbed § 87(2)(b) s arms and pushed her against the hood of the police car. § 87(2)(b) pulled herself upright and PO Reyes pushed her back against the hood of the car to handcuff her. PO Reyes placed § 87(2)(b) in the back of the police car. PO Reyes grabbed the right side of § 87(2)(b) s neck and pushed her into the back seat of the police car. § 87(2)(b) suffers from anxiety when she is confined in small spaces. She tried to explain this to PO Reyes when he placed her in the backseat of the police car. PO Reyes told § 87(2)(b) that she was “acting like a savage.” § 87(2)(b) cursed at PO Reyes including saying “Fuck you.” § 87(2)(b) started banging her head on the window to try and get the attention of one of the other officers.

§ 87(2)(b) submitted video recorded by § 87(2)(b) during this incident which is also attached to this closing report below (Board Review 21). The original quality copy of the video is attached to the case file in Investigative Action #23 (Board Review 22). The contents of the

video are summarized in a detailed investigative action (Board Review 23). In the video, § 87(2)(b) is sitting in his car. PO Banach says over the speaker that § 87(2)(b) is going to be arrested for OGA if she did not move away. § 87(2)(b) gets out of his car. § 87(2)(b) is speaking throughout the duration of the video which renders remarks made by other officers and § 87(2)(b) inaudible. § 87(2)(b) is first seen with her body bent over the hood of the police car. § 87(2)(b) gets back into an upright position. § 87(2)(b) turns her body to face the officers behind her who are handcuffing her. § 87(2)(b) is speaking but her remarks are inaudible. At the end of the video, PO Reyes is seen beside the rear passenger seat with the door open and § 87(2)(b) is no longer visible. § 87(2)(b) complained about the motives of the officers when they stopped him. § 87(2)(b) believed the officers thought he was a drug dealer.



2016-01-11_17-27-29.mp4

§ 87(2)(b) stated that he was in his car recording video of himself about the car stop for his blog. § 87(2)(b) got out of the car when he heard his mother tell him to come get her phone. When § 87(2)(b) got to the rear end of his car he saw his mother bent over the hood of the police car. § 87(2)(b) was recording PO Reyes handcuffing his mother and was alerting the officers of such. The officers were yelling, “Stop resisting” while his mother was being handcuffed. PO Reyes took § 87(2)(b) to the back seat of the police car. PO Reyes put his hand on the back of § 87(2)(b)'s head and pushed her into the car. § 87(2)(b) did not see anything § 87(2)(b) was doing in the back of the police car because he was talking to the officers on the scene. § 87(2)(b) did not hear the officers say anything to § 87(2)(b) in the back of the car. § 87(2)(b) did not hear any officer tell § 87(2)(b) that she was “acting like a savage.”

PO Reyes testified that he exited his vehicle to place § 87(2)(b) under arrest. PO Reyes told § 87(2)(b) that she was being placed under arrest for obstructing governmental administration. § 87(2)(b) resisted by saying “You’re not arresting me,” and pulling her arms and body away from him when he was trying to handcuff her. § 87(2)(b) ended up over the hood of the police car while she was being handcuffed as a result of her pulling her body forward. PO Reyes did not push § 87(2)(b) over the hood of the car. PO Reyes did not recall if he took § 87(2)(b) to the back of the RMP. PO Reyes did not recall if § 87(2)(b) was pushed into the back of the RMP. PO Reyes did not place his hand around § 87(2)(b)'s neck at any point during the interaction. After § 87(2)(b) was placed in the back seat of the police car she started hitting her head against the window. PO Reyes told § 87(2)(b) to stop and that was she was doing was unnecessary. PO Reyes did not recall if he said that § 87(2)(b) “was acting like a savage.” No other officer made this remark to § 87(2)(b).

PO Banach testified that § 87(2)(b) resisted the officers’ attempts to handcuff her by pulling one of her arms forward when the officers tried to grab it (Board Review 07). § 87(2)(b) was pushing her body against the hood of the car. PO Reyes and PO Banach each grabbed one of § 87(2)(b)'s arms and pulled them behind her back. No additional force was used to handcuff § 87(2)(b). No officer pushed § 87(2)(b) onto the hood of the car. § 87(2)(b) leaned forward over the hood of the car as a reflex of her arms being pulled behind her back. PO Reyes did not grab § 87(2)(b) by the neck and push her into the back of the police car after being handcuffed. In the backseat of the car, § 87(2)(b) started hitting her head against the window. PO Banach did not tell § 87(2)(b) that she was acting like a savage.

PO Alberti testified that he and PO Passarella stopped to make sure PO Reyes and PO Banach were ok (Board Review 13). PO Reyes and PO Banach were getting out of their car to

handcuff § 87(2)(b) at the same time that PO Alberti and PO Passarella exited their vehicle. § 87(2)(b) was aggravated. § 87(2)(b) was asking what she was doing wrong. § 87(2)(b) was pulling her arms in front of her. PO Reyes and PO Banach were telling § 87(2)(b) to put her hands behind her back and she did not comply for 5-10 seconds. PO Reyes and PO Banach each pulled one of § 87(2)(b)'s arms behind her back and handcuffed her. § 87(2)(b) was never pushed over the hood of the car while handcuffing her. After she was handcuffed, § 87(2)(b) was compliant in getting into the backseat of the police car. § 87(2)(b) was not pushed into backseat of the police car. No officer touched § 87(2)(b)'s neck while she was being placed in the back of the police car. PO Alberti did not recall § 87(2)(b) hitting her head against the window while she was in the back of the police car. PO Alberti did not recall hearing an officer tell § 87(2)(b) that she was “acting like a savage.”

PO Passarella testified that he and PO Alberti got out of their car to make sure PO Reyes and Banach were ok (Board Review 14). At the same time PO Alberti made a U-turn, PO Reyes and PO Banach were getting out of their car. When PO Passarella and PO Alberti got out of their car, PO Reyes and PO Banach were handcuffing § 87(2)(b). PO Passarella did not recall there being any struggle in getting § 87(2)(b) handcuffed. PO Passarella did not remember any force needing to be used to get § 87(2)(b) handcuffed. § 87(2)(b) was guided and leaned toward the hood of the police car but was not pushed against it. PO Passarella did not remember if § 87(2)(b) was pushed into the back of the police car after she was handcuffed. PO Passarella did not know if any officer made contact with § 87(2)(b)'s neck when she was placed in the back of the car because he was talking with § 87(2)(b) and was facing the opposite direction. § 87(2)(b) started banging her head against the window while she was in the back of the police car. An officer went to speak with § 87(2)(b) to see what was happening. PO Passarella did not hear any officer say that § 87(2)(b) was “acting like a savage.”

Patrol Guide 203-11 states that officers must use “minimum necessary force” at the scene of a police incident (Board Review 17). PG 203-11 goes on to say that “whenever it becomes necessary to take a violent or resisting subject into custody, responding officers should utilize appropriate tactics in a coordinated effort to overcome resistance.”

Patrol Guide 203-10 states that officers are prohibited from “using discourteous or disrespectful remarks regarding another person’s ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability” (Board Review 18).

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Exonerated**.

§ 87(2)(g)

§ 87(2)(g)

_____ it is recommended that **Allegation F**, and **Allegation G** be closed as **unsubstantiated**.

[illegible]

Squad: 8

Investigator: _____
Signature Print Date

Pod Leader: _____
 Title/Signature Print Date

Attorney: _____
 Title/Signature Print Date